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JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Civil Revision No.70734 of 2023

Mushtaq Hussain Shah (deceased) through Legal Heirs

Versus

**The Province of Punjab through District Collector, Sialkot &
others**

J U D G M E N T

Date of hearing: 03.06.2026.
Petitioners by: Mr. Muhammad Akhtar Ch., Advocate.
Respondents by: Mr. Muhammad Saad Bin Ghazi, Assistant
Advocate General.
Mr. Najaf Muzzamal Khan, Advocate (for
respondents No.3 to 7).

MUHAMMAD SAJID MEHMOOD SETHI, J.- Through the instant civil revision petition, the petitioners have called in question the concurrent judgments and decrees dated 24.09.2022 and 28.04.2023 passed respectively by the learned Civil Judge and the learned Additional District Judge, Sialkot, whereby their suit for declaration and permanent injunction as well as the appeal arising therefrom were dismissed. The principal ground on which the suit was held to be not maintainable was that the petitioners had directly invoked the jurisdiction of the civil court to challenge the order dated 07.03.1998 passed by the Assistant Commissioner cancelling Mutation No.335, without first availing the statutory remedies provided under the West Pakistan Land Revenue Act, 1967.

2. Briefly stated, the petitioners claim to have acquired rights in the suit property pursuant to a compromise decree dated 21.06.1987 passed in a pre-emption suit. It is their case that, in implementation of the said decree, Mutation No.335 was sanctioned in their favour on 25.01.1996. The respondents, being the original vendors, challenged the said

mutation before the Assistant Commissioner, who vide order dated 07.03.1998 cancelled the mutation. Instead of pursuing the appellate and revisional remedies available under the West Pakistan Land Revenue Act, 1967, the petitioners instituted the present suit in the year 2000 seeking a declaration that the order of the Assistant Commissioner was illegal, void and without lawful authority.

The respondents contested the suit and, *inter alia*, raised an objection to its maintainability on the ground that the petitioners had bypassed the statutory hierarchy provided under the Land Revenue Act. It was further pleaded that the petitioners were not in possession of the suit property and that the revenue record reflected possession of the respondents. The record further reveals that a subsequent execution petition filed by the petitioners after considerable lapse of time was also dismissed as time-barred by the learned Additional District Judge vide order dated 14.03.2000.

Upon framing of issues and recording of evidence, the learned Trial Court dismissed the suit vide judgment and decree dated 24.09.2022, holding that the civil court lacked jurisdiction in the matter in view of the remedy provided under the Land Revenue Act. The appeal preferred by the petitioners met the same fate and was dismissed by the learned Additional District Judge through judgment and decree dated 28.04.2023. Hence, this civil revision petition.

3. Learned counsel for the petitioners contends that the learned Courts below fell into error in dismissing the suit on the ground of maintainability without examining the legality of the order passed by the Assistant Commissioner. He adds that Mutation No.335 had been sanctioned pursuant to a compromise decree passed by a competent civil court and, therefore, the Assistant Commissioner lacked jurisdiction to cancel the same. He further argues that the respondents' challenge before the revenue authorities was itself barred by limitation and that the impugned judgments have the effect of depriving the petitioners of rights flowing from a valid decree of a competent court. In support, he has referred to Muhammad Umer v. Muhammad Qasim and another (1991

SCMR 1232), Rasta Mal Khan and others v. Nabi Sarwar Khan and others (1996 SCMR 78), Shahra and others v. Member, Board of Revenue, Punjab and others (2004 SCMR 117), Mst. Imtiaz Begum v. Mst. Sultan Jan and others (2008 SCMR 1259), Bashir Ahmed v. Messrs Muhammad Saleem, Muhammad Siddique & Co. (Regd.) and others (2008 SCMR 1272), Muhammad Aslam v. Collector and another (1992 CLC 851), Muhammad Akbar deceased through His LRs and others v. Major Taj-ud-Din deceased through His LRs and others (PLJ 2006 Lahore 1000), Ahsan Ali through L.Rs. and others v. Province of Sindh through District Coordination Officer Thatta and 4 others (2007 MLD 884), Pineen Khan v. Muhammad Anwar and others (2011 CLC 550), Hakeem Khadim Hussain through Legal Heirs v. Member (Judicial-II), Board of Revenue, Punjab Lahore and 3 others (2019 YLR 710), Mst. Ghulam Fatima and others v. Pahar Khan and others (2024 CLC 1538) and Nargis Bibi (widow) through her legal heirs and others v. Muhammad Amin and others (2024 YLR 2342).

4. Conversely, learned counsel for the respondents No.3 to 7, duly assisted by learned Law Officer, supports the concurrent judgments and submits that the petitioners admittedly failed to avail the statutory remedies available under Section 161 of the West Pakistan Land Revenue Act, 1967 and, therefore, the suit was rightly held to be incompetent. He contends that the bar contained in Section 172 of the Act was fully attracted and that no case of fraud, *mala fide*, collusion or jurisdictional excess was either pleaded or proved so as to attract any recognised exception to the exclusion of civil jurisdiction. In support, he has relied upon Administrator, Thal Development through EACO Bhakkar and others v. Ali Muhammad (2012 SCMR 730), Muhammad Siddique (Deceased) through LRs and others v. Mst. Noor Bibi (Deceased) through LRs. and others (2020 SCMR 483), Iftikhar Ali Abbasi and others v. Ghulam Qadir and others (PLD 2025 Supreme Court 685), Hakam and others v. Tassadaq Hussain Shah (PLD 2007 Lahore 261), Zahid Hussain and 10 others v. Shamasuddin and 9 others (2014 CLC 1334), Muhammad Azam Khan and 17 others v. Muhammad

Sarwar and 21 others (2015 YLR 750), Muhammad Khan v. Muhammad Abbas and 15 others (2018 CLC 292), Iqbal Hussain and 6 others v. Muhammad Ayaz Khan and 13 others (2019 YLR 706) and Mushtaq Ahmad and another v. Saiqa Ch. and others (PLD 2025 Lahore 704).

5. I have heard the learned counsel for the parties at considerable length and have carefully examined the record with their able assistance.

6. The principal controversy in the present case relates to the maintainability of the suit instituted by the petitioners for challenging the order dated 07.03.1998 passed by the Assistant Commissioner whereby Mutation No.335 was cancelled. The record reveals that the impugned order was admittedly passed by a revenue authority exercising powers under the West Pakistan Land Revenue Act, 1967. It is further an admitted position that against such order the statute itself provides a complete and effective hierarchy of remedies. Section 161 of the Act envisages appeals before the competent revenue authorities, culminating in the jurisdiction of the Board of Revenue. The petitioners, however, did not avail any of the statutory remedies available to them and instead instituted the present civil suit directly before the civil Court.

7. The legal position, as consistently recognized under the relevant statutory scheme and settled judicial interpretation, is that where the legislature has provided a special forum along with an adequate and efficacious mechanism for redressal of a grievance, the aggrieved party is required, in the first instance, to avail such remedy before invoking the jurisdiction of the civil Court. The rationale behind this principle is to ensure orderly adjudication within the prescribed hierarchy and to prevent parallel proceedings in fora of overlapping jurisdiction. In the present case, it is evident from the record that the petitioners, instead of pursuing the remedies available within the revenue hierarchy, directly approached the civil Court, thereby bypassing the statutory mechanism designed for adjudication of such disputes. Such a course of action cannot be countenanced in law, particularly where the statutory forums

are not only available but are also competent to effectively adjudicate upon the controversy involved.

This Court finds support for the above view from the consistent line of judicial pronouncements of the Hon'ble Supreme Court, including Muhammad Siddique (Deceased) through LR's and others v. Mst. Noor Bibi (Deceased) through LR's and others (2020 SCMR 483) and Bashir Ahmed v. Messrs Muhammad Saleem, Muhammad Siddique & Co. (Regd.) and others (2008 SCMR 1272) and Jamshed Khan and 6 others v. Akbar Khan and 15 others (PLD 2026 Lahore 146), wherein it has been reiterated that where an effective alternate remedy exists under the statutory framework, recourse to civil jurisdiction without exhausting such remedy is not permissible. Viewed thus, the approach adopted by the learned Courts below does not suffer from any illegality or jurisdictional defect and is in consonance with the settled principles governing the exercise of civil jurisdiction.

8. Equally significant is the fact that neither fraud, nor *mala fide*, nor collusion on the part of the revenue authorities was specifically pleaded in the plaint. It is a settled rule that questions of fraud or *mala fide* must be pleaded with specificity and thereafter proved through evidence. In the absence of such foundational pleadings, the petitioners could not legitimately invoke one of the recognised exceptions to the bar contained in Section 172 of the Land Revenue Act. Nevertheless, a careful examination of the pleadings and the issues framed by the learned Trial Court shows that the petitioners' challenge was not confined merely to the correctness of the order passed by the Assistant Commissioner. Their consistent stance was that Mutation No.335 had been sanctioned pursuant to and in implementation of a compromise decree passed by a competent Civil Court in the pre-emption proceedings and that the Assistant Commissioner lacked jurisdiction to cancel a mutation deriving its existence from a judicial decree. Reliance is placed upon Taj Wali Khan v. Hukam Khan (decd) through L.Rs (2025 SCMR 231).

9. This aspect assumes considerable significance. A mutation entered on the basis of an ordinary private transaction stands on a different footing from a mutation sanctioned in consequence of a decree passed by a competent Civil Court. While revenue authorities undoubtedly possess jurisdiction in matters relating to mutations and revenue entries, the question whether such authority extends to cancelling a mutation that owes its existence to a civil Court decree raises a distinct issue relating to jurisdiction itself. Reference is made to Allah Ditta v. Ghulam Muhammad and 3 others (2008 SCMR 1021).

10. A decree passed by a Court of competent jurisdiction remains valid, binding and operative unless and until it is set aside, modified or varied by a forum recognized by law. Any action which effectively nullifies or disregards the consequences flowing from such a decree necessarily invites scrutiny from the standpoint of jurisdiction. It is a settled principle that if a Court is competent to hear and decide a suit, it is equally competent to decide it either rightly or wrongly; and so long as its decision remains unreversed by a superior forum in appeal or other lawful proceedings, the decree continues to be valid, binding and enforceable upon the parties. Reliance is placed upon Messrs Lyallpur-Sahiwal Bus Service (Recd.), Lahore v. Appellate Authority and 2 others (PLD 1970 Lahore 775). The issue, therefore, was not merely whether the Assistant Commissioner exercised his jurisdiction correctly; rather, it was whether he possessed such jurisdiction at all in the peculiar facts of the case.

Surprisingly, despite the centrality of this question, neither the learned Trial Court nor the learned Appellate Court recorded any finding thereon. Both the learned Courts below disposed of the controversy solely on the ground of maintainability and non-exhaustion of revenue remedies without examining whether the impugned order dated 07.03.1998 suffered from an inherent jurisdictional defect. The omission is material because jurisdictional competence strikes at the root of the matter and constitutes a recognised exception to the general rule requiring exhaustion of alternative remedies.

11. Another aspect which remained unaddressed by both the learned Courts below concerns the petitioners' plea that the proceedings initiated before the Assistant Commissioner were themselves barred by limitation. The petitioners consistently asserted that the challenge to Mutation No.335 had been instituted beyond the prescribed period. Whether such contention is ultimately sustainable is a matter requiring determination on the basis of the record; however, the fact remains that no specific finding was returned by either learned Court below on this question. Limitation is a material question, which is necessary to be decided. The importance of instituting a lis within the prescribed period of limitation was elaborated by the august Supreme Court in Sindh Irrigation and Drainage Authority v. Province of Sindh and another (2026 SCMR 190), in the following words:

"9. ... The purpose of limitation set down in the Limitation Act, 1908 is not meant to obliterate or devastate the rights of the parties but in all intent and purposes, it is to make sure that parties do not resort to lagging or sluggish trickeries and the bright idea is to keep alive every legal remedy for a period specified by the legislature under the Limitation Act, 1908 and within such period, a legal remedy can be availed for the recompense and reparation of the grievance.....The law of limitation is founded on public policy with the common sense and wisdom of attaining finality to the judgments. The Latin phrase "interest reipublicae ut sit finis litium" accentuates that "it is in the interest of the state that there be an end to litigation"."

12. The absence of findings on these material issues has created a legal vacuum in the impugned judgments. Once such questions were specifically raised and formed part of the controversy between the parties, the learned Courts below were under an obligation to address them and record definite conclusions thereon. Failure to determine material issues amounts to failure to exercise jurisdiction vested in the Court and attracts the supervisory jurisdiction of this Court under Section 115 CPC.

13. As regards the factual findings relating to possession, the evidentiary value of the *girdawari* entries and the credibility of the witnesses produced by the parties, I find no occasion to interfere. Both

the learned Courts below have concurrently appreciated the evidence on record and have returned findings which cannot be described as perverse, arbitrary or based upon misreading or non-reading of evidence. Likewise, the order passed by the learned Appellate Court declining the amendment sought at a highly belated stage does not suffer from any legal infirmity warranting interference. The august Supreme Court, in Mst. Farzana Zia and others v. Mst. Saadia Andaleeb and others (2024 SCMR 916), while delineating the scope of revisional jurisdiction, held that where the concurrent findings of the Courts below are founded upon a proper appreciation of the evidence available on record, interference in revision is not warranted unless such findings are shown to suffer from jurisdictional defect, illegality, material irregularity, misreading or non-reading of evidence.

14. Consequently, while the concurrent findings of the learned Courts below regarding the requirement of exhausting the statutory remedies provided under the West Pakistan Land Revenue Act, 1967 are maintained, it cannot be overlooked that two material questions, namely: (i) whether the Assistant Commissioner possessed jurisdiction to cancel a mutation sanctioned pursuant to a civil Court decree; and (ii) whether the proceedings before the Assistant Commissioner were instituted within limitation, have remained undecided. Since these questions relate to the legality and validity of the order dated 07.03.1988 and have not been adjudicated by either of the learned Courts below, the interests of justice require that the matter be remitted for adjudication of the said issues through a reasoned and speaking order after affording the parties an adequate opportunity of hearing.

15. Consequently, this Civil Revision is partially allowed. The judgments and decrees dated 24.09.2022 and 28.04.2023 passed by the learned Civil Judge and the learned Additional District Judge, Sialkot, respectively, are **set aside** to the limited extent indicated above, and the case is **remanded** to the learned Trial Court for a fresh decision on the unresolved questions arising in the matter. The learned Trial Court shall specifically determine: (i) whether Mutation No.335 was sanctioned in

execution and implementation of the civil Court decree dated 21.06.1987 and, if so, whether the Assistant Commissioner possessed jurisdiction under the West Pakistan Land Revenue Act, 1967 to cancel such mutation; and (ii) whether the proceedings initiated before the Assistant Commissioner culminating in the order dated 07.03.1998 were within limitation and, if not, the legal effect thereof. The learned Trial Court shall afford the parties an adequate opportunity of hearing and shall decide the aforesaid questions through a reasoned and speaking judgment in accordance with law. The findings of the learned Courts below, as affirmed herein, regarding the petitioners' failure to avail the statutory remedy provided under Section 161 of the West Pakistan Land Revenue Act, 1967, shall not prejudice the learned Trial Court from independently determining the aforesaid questions of jurisdiction and limitation. All contentions of the parties on the remanded issues shall remain open for fresh determination. The observations made in this judgment are tentative in nature and shall not prejudice either party. The learned Trial Court shall endeavour to conclude the proceedings expeditiously, preferably within a period of **two (02) months** from the date of receipt of a certified copy of this judgment.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

A.H.S.